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IN THE
Supreme Court of the United States
OCTOBER TERM, 1998

WARNER JACKSON, *et al.*,
Petitioners,
v.
JOHN T. BENSON, *et al.*,
Respondents.

MILWAUKEE TEACHERS' EDUCATION ASSOCIATION, *et al.*,
Petitioners,
v.
JOHN T. BENSON, *et al.*,
Respondents.

NATIONAL ASSOCIATION FOR THE ADVANCEMENT OF COLORED PEOPLE, *et al.*,
Petitioners,
v.
JOHN T. BENSON,
Respondent.

On Petition for a Writ of Certiorari to the Supreme Court of Wisconsin

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REPLY BRIEF OF PETITIONERS

Briefs in response to our Petition for Certiorari have been filed by respondents State of Wisconsin ("State"), Parents for School Choice *et al.* ("PSC"), and Marquelle Miller *et al.* ("Miller"). Although the three respondent

parties are united in disputing our legal contentions, they are not of one mind with regard to the question at issue here—whether this case warrants the attention of this Court. While the State and the Miller respondents oppose granting the Petition—notwithstanding the State's acknowledgement that the issue it presents "is of profound legal and practical importance, both to Wisconsin and to the Nation," State Br. at 1—PSC urges this Court to grant review, contending that this is the "ideal" case for clarifying the constitutional boundaries applicable to private school tuition voucher programs, PSC Br. at 13, and for removing the "constitutional cloud," *id.* at 4, that shrouds both those programs that have been enacted and those that are under consideration in various legislative forums.

The State and the Miller respondents oppose the Petition for two reasons: First, they deny that the decision below is—as we contend—in irreconcilable conflict with the decision of this Court in *Committee for Public Education v. Nyquist*, 413 U.S. 756 (1973). Second, they suggest that this Court should wait for some other case to address the issues presented here. We reply briefly to both points.[1]

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[1] We do *not* reply, however, with respect to two other kinds of issues raised by respondents' briefs. First, respondents devote far more attention to arguing the merits of the Establishment Clause issue than to discussing whether it warrants this Court's attention. We sketched briefly in the Petition our view of why this Court's more recent cases do not undermine its 1973 holding in *Nyquist*, *see* Pet. at 17-19, and further elaboration of this argument is more appropriately reserved for briefing on the merits, should the Petition be granted. What respondents' contentions amply confirm, however, is our point that this Court should revisit this issue because its "post-*Nyquist* jurisprudence has proved susceptible to such radically differing interpretations." Pet. at 19.

Second, all of the respondents discuss at some length the problems of urban education and the supposed merits of "parental choice" programs as a means of addressing these problems. *See* State Br. at 3 ("Any consideration of the constitutionality of the expanded Choice Plan must begin with a frank recognition of the serious

1. The core of the argument against Certiorari offered by the State and the Miller respondents is the contention that the decision below is not, in fact, in conflict with this Court's precedent in *Nyquist*. Indeed, even PSC —while agreeing that this Court must bring clarity to this area of the law—maintains that the Wisconsin Supreme Court correctly distinguished the facts of the instant case from those before this Court in *Nyquist*.

While slightly more extended, respondents' efforts to identify a material distinction between the Amended Milwaukee Parental Choice Program ("Amended MPCP") and the New York tuition reimbursement program at issue in *Nyquist* are no more successful than the Wisconsin Supreme Court's disposition of the same question in a brief footnote. *See* Pet. App. at 19a n.9. Indeed, except for some additional arguments by the State, *see infra* pp. 5-6, respondents' contentions that this case is different from *Nyquist* begin and end with the one point advanced by the court below. As the State puts it:

> [A]s the Wisconsin court recognized, "[i]n *Nyquist*, each of the facets *of the challenged program* directed aid exclusively to private schools and their students." Pet. App. 19a n.9 (emphasis added). The expanded Choice Plan, by contrast, "provides a neutral benefit to qualifying parents [of MPS students]," because,

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porblems facing the [Milwaukee Public Schools]."); PSC Br. at 1-2, 6-10; Miller Br. at 1-6, 24-26. Petitioners have very strong views, sharply at odds with those of the respondents, as to whether such "choice" programs that skim off a few students from relatively highly motivated families and place them in private schools will solve the problems of urban education or, to the contrary, only compound those problems and prevent the development of meaningful solutions. But the question of whether the Amended MPCP is sound public policy is not the issue before this Court. We agree with the sentiment expressed by the Miller respondents—at the conclusion of their public-policy discussion—that "[p]etitioners should save their policy arguments for the legislature." Miller Br. at 26. So should respondents.

> *"viewed in its surrounding context,"* it "merely adds religious schools to a range of pre-existing educational choices available to MPS children." *Id.* [State Br. at 23 (emphasis altered).]

See also PSC Br. at 16-17; Miller Br. at 15.

We have altered the emphasis in this quotation from the State's brief in order to illustrate the glaring defect in the analysis of the court below, which is adopted by all three respondent parties: the *Nyquist* program is compared to the Amended MPCP by looking, in the former case, to where public funds go under "the challenged program" standing alone, while, in the latter case, viewing the program "in its surrounding context" of the state's overall education offerings. Only by skewing the comparison in this way are respondents able to assert that while the aid provided in *Nyquist* went solely to parents of children in private schools, that provided here is available for use, at the parents' option, in public or private schools.

The asserted distinction between the Amended MPCP and the *Nyquist* program is, in other words, not one of "seminal fact" (as the court below put it, Pet. App. at 19a n.9), but rather simply a matter of differently characterizing two factually identical programs. The fact is that, both here and in *Nyquist*, "the challenged program" provided funds for use only in private schools. The fact is that New York in 1973 and Wisconsin today offered free public schools, and that parents eligible for the tuition grants provided under both voucher programs could choose whether to send their children to the public schools or accept the voucher for use at private schools.[2] The

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[2] There is, to be sure, one difference between the New York program and the Amended MPCP in this regard. While New York offered reimbursement of only 50% of private-school tuition, the Amended MPCP in most cases pays *more* than tuition. But we do not believe respondents mean to suggest that this difference is a basis for distinguishing *Nyquist*, for that would be to say that the

fact is that in both cases the great majority of all children educated at public expense were educated in the public schools, so that one could choose to characterize either program—"viewed in its surrounding context"—as involving benefits "made available generally without regard to the sectarian-nonsectarian, or public-nonpublic nature of the institution benefited." *Nyquist*, 413 U.S. at 782-83 n.38.

The *Nyquist* Court did not so characterize the program before it, however; indeed, it specifically rejected that approach (advocated by a dissenting opinion) as leading to results "wholly at variance with the Establishment Clause." *Id.* That is not the key point here, however. Rather, what is important for present purposes is that there is simply no factual basis for distinguishing the Amended MPCP from the program that was before this Court in *Nyquist*: whether one looks to "the challenged program" or views that program "in its surrounding context," so long as a consistent perspective is applied there is no material difference that could form a basis for distinguishing *Nyquist* from the instant case.

The State also advances several other purported distinctions between the two cases, State Br. at 24-25, but in so doing it overlooks the elementary point that, as Chief Judge Posner recently put it, "[i]t is not cricket to distinguish a precedent by pointing to a fact mentioned by the court in the previous opinion but clearly given no weight by it. Otherwise no precedent would have any force, for no two cases are exactly alike." *Khan v. State Oil Co.*, 93 F.3d 1358, 1362 (7th Cir. 1996), *vacated on other grounds*, 118 S. Ct. 275 (1997). The State contends that the *Nyquist* program and the Amended MPCP were animated by "decidedly different goals," State Br. at 24, but that is irrelevant even if it is right, for *Nyquist*

New York program was unconstitutional because it paid *too little* of the cost of a sectarian school education.

did not turn on the *purpose* of the program but rather its effect, *see* 413 U.S. at 774, and petitioners do not contend that the Amended MPCP is invalid because of its purpose. Nor is it possible to discern any constitutional relevance in the distinction that the Amended MPCP is targeted to low-income parents (as was, indeed, the tuition reimbursement program in *Nyquist, see* 413 U.S. at 764) and to one school district. State Br. at 24-25.

Finally, the State's assertion that "the *Nyquist* Court emphasized that the New York statute placed no restrictions on private schools," *id.* at 25 (citing 413 U.S. at 782-83) completely misses the point of the passage it cites. The lack of "restrictions" of which this Court complained in *Nyquist* was the lack of any restrictions *on how the public funds would be spent*:

> The tuition grants here are subject to no such restrictions. There has been no endeavor "to guarantee the separation between secular and religious educational functions and to ensure that State financial aid supports only the former." [413 U.S. at 783.]

Precisely the same is true here: on this critical point the Amended MPCP and the program struck down in *Nyquist* are identical.[3]

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[3] The State also alludes in this connection to the statutory provision that purports to permit MPCP students to "opt out" of religious activities, Wis. Stat. § 119.23(7)(c). While the *Nyquist* program contained no such provision, this is hardly a relevant distinction where the issue is whether taxpayers can be made to help pay for the religious education of other people's children. Absent the unrealistic assumption that every MPCP pupil would exercise the right to opt out of all religious activities, the "opt out" provision merely underscores that taxpayer funds will be expended to support religious education and other religious activities. Moreover, while it might be feasible for students to "opt out" of certain discrete activities, such as a religion class or perhaps even a morning prayer, it is wholly unrealistic to think of "opting out" of a religious education in the setting of a "pervasively sectarian" school where "[t]he very purpose . . . is to provide an integrated secular

In point of fact, the Amended MPCP is on all fours with *Nyquist* on every point this Court deemed important in striking down the New York tuition reimbursement program. Although the court below chose not to recognize this point—and instead brushed off this Court's precedent as distinguishable on wholly unsupportable grounds—the fact remains that the lower court "has decided an important federal question in a way that conflicts with relevant decisions of this Court." Sup Ct. R. 10(c).

2. Viewed against this background, the State's assertion that this case is a "poor vehicle" for resolution of the continuing vitality of this Court's decision in *Nyquist*, State Br. at 22, rings utterly hollow. It is unlikely that this Court would have another case in which the issues raised here would be presented any more squarely and unavoidably than in the instant case. As respondent PSC—whose attorneys have been involved in all of the pending voucher cases—points out, "[a]mong the cases involving parental choice presently in litigation around the nation, this case provides the best opportunity for the Court to resolve the common constitutional question." PSC Br. at 13.[4]

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and religious education." *Meek v. Pittenger*, 421 U.S. 349, 366 (1975); *see* Pet. App. at 66a-67a, 149a-151a (quoting literature of schools participating in Amended MPCP). Nor is it realistic to believe that, simply because the statute formally gives students a choice to absent themselves from religious activities, participation in such activities is "voluntary" in any meaningful sense. *Cf. Lee v. Weisman*, 505 U.S. 577, 592-95 (1992). In short, the statutory "opt out" provision is of no substance or relevance to the issue presented in this case.

[4] As we pointed out in the Petition, while a number of cases pending in the lower courts raise similar issues, all but one involve unique facts that might make a decision involving them less generally applicable. *See* Pet. at 22 & nn.18-19. Thus, the Vermont and Maine cases involve small school districts that pay for their students to attend private secondary schools because they do not maintain their own public secondary schools, while the Arizona

Equally important, there is no compelling reason for this Court to wait for another case, and every reason for it not to do so. This is not a novel matter, as to which this Court might wish to obtain the views of more lower courts before venturing into the arena. To the contrary, this Court squarely and exhaustively addressed precisely this issue 25 years ago, and the question now presented is whether or not that decision should be reconsidered. In the interim, this Court has issued numerous decisions involving the constitutionality of state aid to religious education in a variety of related contexts. In sum, as *amici* American Jewish Congress *et al.* ("AJC") observe, the Establishment Clause issue presented here "has been thoroughly explored in a wide variety of contexts." AJC Br. at 9. It is doubtful that further ventilation of the issue in the lower courts could produce much by way of analysis or insight that is not already available to this Court.

Should this Court decline to address the constitutionality of school voucher programs at this time, moreover, the result would be to leave in place the "constitutional cloud," PSC Br. at 4, that shrouds such programs—both those that have been enacted and those that are under consideration in a number of state legislatures. Nothing is to be gained by leaving this issue for another day, when a subsequent decision of this Court might require many schoolchildren and their families to rearrange their lives in response to what is then decided. Both the need for clarity on an important issue of constitutional law and concern for the impact of delay on the lives of those affected counsel granting the Writ of Certiorari in this case.

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litigation involves a tax credit for voluntary contributions to organizations that fund private-school scholarships. As to *Simmons-Harris v. Goff*, No. 97-1117 (Ohio), currently pending in the Ohio Supreme Court, state constitutional issues may well be decisive; the oral argument of that case on September 28, 1998, focused in significant part on whether enactment of the voucher program as part of an omnibus appropriations bill was contrary to a provision of the Ohio Constitution.

CONCLUSION

The Petition for a Writ of Certiorari should be granted.

Respectfully submitted,

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